

25NNCV01847 25NNCV01847

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-03

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Case Number: 25NNCV01847 Hearing Date: August 3, 2026 Dept: X

#19 - JAMES COLUCCI vs SABRINA KHAGGI, et al.

Plaintiff's motion

is GRANTED.

The Court finds the

meet-and-confer requirement satisfied. Plaintiff's

June 22 letter expressly addressed the failure to produce documents requested

at deposition, and Plaintiff's evidence shows a further June 30 telephone

follow-up on the same issue. Although

Defendant disputes the scope of those discussions, the Court is satisfied that

Plaintiff made a reasonable and good-faith effort to resolve this dispute

informally before seeking court intervention.

The motion is not

moot. Defendant's opposition relies

primarily on later responses to Set Two and Set Three written discovery, but

the opposition does not show that Defendant served responses to, or complied

with, the twelve document requests contained in the deposition notice. (Opp., p. 5.) To the contrary, the opposition states

Defendant is still "willing to draft responses" to those requests. The undisputed record further shows that

Defendant appeared for deposition without producing any of the requested

documents.

Under these

circumstances, Plaintiff is entitled to an order compelling a proper response

to the deposition document demand, including production of responsive

nonprivileged documents, a privilege log for any withheld documents, and a

verified statement of inability to comply where appropriate.

As to sanctions,

Plaintiff requests \$5,260.00, consisting of 8.0 hours of attorney time at \$650.00 per hour plus a \$60.00 filing fee. The Court finds monetary sanctions in the reduced amount of \$2,660 is warranted. Defendant appeared without the requested documents, did not cure after Plaintiff's specific written demand, and did not show that compliance with the deposition document demand had occurred by the time of opposition. Counsel's explanation of inadvertence may explain the delay, but it does not constitute substantial justification sufficient to avoid sanctions on this record.

Sanctions are payable to Plaintiff's counsel within 30 days from service of notice of ruling.

Moving Party is to give notice.